

HOUSE No. 2644

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel J. Hunt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fire protection.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel J. Hunt</i>	<i>13th Suffolk</i>	<i>1/14/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>6/16/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>6/16/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>6/16/2025</i>

HOUSE No. 2644

By Representative Hunt of Boston, a petition (accompanied by bill, House, No. 2644) of Daniel J. Hunt relative to clarifying the standards for requiring the installation of automatic sprinkler systems in rehabilitated buildings. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2290 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fire protection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 148 of the General Laws is hereby amended by striking out in its
2 entirety section 26I and inserting in its place the following new section:

3 Section 26I. In a city, town or district which accepts the provisions of this section, any
4 building hereafter constructed or which undergoes a major alteration or modification and is
5 occupied in whole or in part for residential purposes and containing not less than four dwelling
6 units including, but not limited to, lodging houses, boarding houses, fraternity houses,
7 dormitories, apartments, townhouses, condominiums, hotels, motels and group residences, shall
8 be equipped with an approved system of automatic sprinklers in accordance with the provisions
9 of the State Building Code. In the event that adequate water supply is not available, the head of
10 the fire department shall permit the installation of an alternative or modified fire suppression

11 system as prescribed by the State Building Code in lieu of automatic sprinklers. Owners of
12 buildings with approved and properly maintained installations may be eligible for a reduction on
13 fire insurance. The head of the fire department shall enforce the provisions of this section.

14 Whoever is aggrieved by the fire department's interpretation, order, requirement,
15 direction or failure to act under the provisions of this section, may within forty-five days after the
16 service of notice thereof, appeal from such interpretation, order, requirement, direction or failure
17 to act to the automatic sprinkler appeals board as provided in section two hundred and one of
18 chapter six. The board may grant a reasonable waiver from the provisions of this section, or may
19 allow the installation of a reasonable alternative, modified or partial system of automatic
20 sprinklers based upon the characteristics of the building or for those buildings that have
21 architectural or historical significance.

22 SECTION 2. Nothing in this act shall be construed as limiting the State Building Code
23 from requiring more stringent requirements for installation of automatic sprinklers in residential
24 buildings.

25 SECTION 3. The provisions of section one shall not apply to construction projects
26 approved by permit within one year prior to the effective date of this act.